

#	Case Name	Tentative
		fn. 10.) "Depending on proof of the nature and extent of the insurer's claims handling practices, the trial court [will] determine whether injunctive relief [is] appropriate" once the litigation reaches that point, and the failure formulate a specific injunction in the complaint does not render the claim susceptible to demurrer. (See <i>id.</i> at p. 381, fn. 10.) " '[A] demurrer tests the sufficiency of the factual allegations of the complaint rather than the relief suggested in the prayer[.]' " (<i>Ibid.</i>) <u>Seventh cause of action, negligence.</u> The complaint fails to state facts sufficient to constitute a cause of action for negligence. (See <i>Regents of University of California v. Superior Court</i> (2018) 4 Cal.5th 607, 618 [negligence elements]; see also <i>Benavides v. State Farm General Ins. Co.</i> (2006) 136 Cal.App.4th 1241, 1249-1253 (<i>Benavides</i>).) The alleged conduct at issue under this claim—i.e., "failing to conduct a reasonable investigation and ... unreasonably denying defense and coverage" within a month of receiving the claim, thereby causing plaintiff financial/economic harm (Compl. ¶¶ 15-17, 30-31, 61-64)—only gives rise to a tort claim for bad faith breach, not negligence. (See <i>Benavides</i>, at pp. 1249-1253.) Defendants shall give notice of this ruling.
51.	Mendoza v. Garden Grove Unified School District 2023-01312531	Plaintiff Juan Mendoza's motion for leave to file first amended complaint is GRANTED. (See Code Civ. Proc., § 473, subd. (a)(1); <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761.) Plaintiff is ORDERED to separately file and serve the proposed first amended complaint (Johnson Decl. at Ex. 1) within five court days. The first amended complaint must be filed as a separate document to ensure it is properly indexed in the record. Plaintiff shall give notice of this ruling.
52.	Bales v. Belenardo 2021-01201005	Defendants John and Susan Belenardo's motion for attorney fees pursuant to Civil Code section 5975 is GRANTED in part. Civil Code section 5975, part of the Davis-Stirling Common Interest Development Act, provides that in an action to enforce the governing documents, the prevailing party shall be